

****25.04.2025****

****Sanction for GDPR Violation****

The National Authority for the Supervision of Personal Data Processing completed, in April 2025, an investigation into the operator SC Travel Planner SRL and found violations of the provisions of art. 32 and art. 33 and art. 15 in relation to art. 12 para. (3) and (4) of Regulation (EU) 2016/679. As such, the operator was sanctioned administratively:

- with a fine of 24,886 lei (equivalent to 5,000 EURO) for violating art. 32 of Regulation (EU) 2016/679;
- with a fine of 4,977.20 lei (equivalent to 1,000 EURO) for violating art. 33 of Regulation (EU) 2016/679;
- with a warning for violating art. 15 of Regulation (EU) 2016/679, in relation to the provisions of art. 12 para. (3) and (4) of Regulation (EU) 2016/679.

The investigation was initiated following complaints that reported a possible illegal processing of personal data. During the investigation, it was found that the operator, in order to organize a raffle to reward its customers, published on its Facebook page a table containing personal data of tourists, such as: names, surnames, reservation identification numbers, the hotel or location where they made the reservation, and the duration of the stay. Thus, the operator did not adopt sufficient technical and organizational security measures. This situation led to the unauthorized disclosure of the data of the data subjects, violating the provisions of art. 32 of Regulation (EU) 2016/679. Therefore, the operator was fined 5,000 Euro.

It was also found that the operator did not notify this data security breach, which contravenes the provisions of art. 33 of Regulation (EU) 2016/679, thus a fine of 1,000 Euro was applied. At the same time, during the investigation, it emerged that no evidence was presented regarding the communication to the applicants of a complete response to their request exercising their right of access, thus violating the provisions of art. 15, in relation to the provisions of art. 12 para. (3) and (4) of Regulation (EU) 2016/679. The operator was sanctioned for this act with a warning.

At the same time, the following corrective measures were imposed on the operator:

- to ensure compliance with Regulation (EU) 2016/679 of the operations of personal data processing, by implementing appropriate technical and organizational security measures specific to the processing and identified risks, throughout the data processing cycle, training of persons processing data under the authority of the operator, and regular verification of compliance with the instructions given to them;
- to ensure compliance with Regulation (EU) 2016/679 of the operations of personal data processing, by adopting the necessary internal measures for the rapid detection, management, and reporting of situations of personal data security breaches, whether or not they require notification to the supervisory authority and/or the data subjects, as well as appropriate and regular training of persons processing data under the authority of the operator, in this context;
- to communicate to the applicants a response to the request for exercising the right of access.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****